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Respondent informed consent and data privacy FAQ

This Help Center article gives guidance on how to collect consent from respondents before data collection and informs you about basic questions regarding data privacy.

Respondent informed consent

Many countries have it as an obligation that you must only collect data from a person if they agree to the data collection and are informed about the purpose as well as how you will store and process the data. The legislation depends on your country of residence (potentially also the respondent's country of residence) and iMotions cannot give consultancy on what is required by the respective countries.

As a general rule, you must be able to document that you informed the respondent about

- the purpose of the study
- that participation is voluntary
- their rights when participating in the study
- how you will handle the data collected in the study
- possible risks they may be exposed to during the study

This can be done through a consent form that the respondent signs. A way to handle consent is to share the study information already when recruiting the respondents, and then give them the possibility to re-read the study information as well as have them sign the consent form on the day of the data collection.

Attached to this Help Center article, you can find an example for how you can formulate your consent form with respect to the European Union's laws. Please note that iMotions will not take any responsibility for the information being complete and correct.

If you are using any of iMotions' Cloud powered products, you will also need to declare to the respondent where their data will be stored and processed. You can find more information about this in the Data Processor Agreement that you signed with iMotions (under my.imotions.com/#dpa).

It is your responsibility to correctly inform and instruct the respondent, to follow the rules of your country, and to implement the necessary processes for correct data handling, such as anonymization of the data, deletion of data that is no longer needed, and storing documentation.

Data privacy FAQ

What data can/will iMotions store?

iMotions will only keep and store personal data collected by the user until the user decides to delete the data. Collected data may include, but not be limited to, photos and/or videos of respondent's faces, submitted survey answers, and other data relevant to the scope of the appropriate research study.

Where does iMotions store my data?

If you are using the iMotions Desktop software, all data will be stored locally on your PC. Therefore, it is your responsibility to protect your PC with a password and encryption. Likewise, if you export data or generate backups of your studies, it is your responsibility to only use safe devices or services to store and transfer this data.

If you are using a cloud powered product (for example Online Data Collection, iMotions Cloud, or cloud-based batch processing of facial coding or eye tracking data), iMotions will upload your data on the servers specified in our [Data Processor Agreement](#). iMotions cloud servers, batch processing servers, and mobile data servers are operated by Amazon Web Services, Microsoft Azure, and Google Cloud Platform. iMotions has signed Data Processor Agreements and where necessary Standard Contractual Clauses (SCCs) with all data processors.

How does iMotions ensure the safe transfer of data when using iMotions Cloud Services?

Data transferred both from the iMotions desktop application as well as data collected from respondents' private browsers to the iMotions Cloud is encrypted with SSL/HTTPS encryption.

How long does iMotions store data?

How long iMotions stores data depends on which service a user needs. If data is being uploaded to the iMotions cloud, it is kept until the user deletes it. Amazon will keep backups of cloud data for 14 calendar days after which it will be deleted. In the case of batch processing, iMotions will keep data until the processing is complete, and then delete it. If data is being stored for a service project the data is usually kept in Google Drive as backup and deleted after the project is over. It can take up to 180 calendar days for Google to successfully delete the data from Google Drive.

Where can I learn more about the iMotions privacy policy?

We refer you to our privacy policy, which can be found [here](#).

Who is responsible in the event of a data breach?

The Data Controller, usually the person or organization who requests the data collection and "owns" the data. If you are using the iMotions infrastructure for your studies, iMotions will act as a Data Processor and you are carrying the responsibility that all data processors as well as your staff are living up to the required data privacy standards.

How do I anonymize my study?

Data anonymization depends on the type of data collected:

- Use anonymous IDs as respondent names
- If the stimulus or a recording of the screen/ cameras can identify the respondent, you can find the video files in the *Capture* folder of your study and process them in a video editing software to e.g. blur out parts of the video. We recommend to first do this after you have post processed all videos and completed your analysis.
- Avoid microphone recordings unless needed because the voice can identify the respondent
- When you save a study to a zip file, you can choose to exclude respondent and environment camera recordings. We recommend to first do this after you have post processed all videos and completed your analysis.

